STATE OF VERMONT

SUPERIOR COURT **FAMILY DIVISION**

Unit **Case No. _____**

Plaintiff	Date of Birth		Defendant	Date of Birth
		V.		

Defendant's Full Physical Address: _____

Name of person filing on behalf of child: _____ Date of Birth: _____

Affidavit in Support of Relief from Abuse Complaint for Child

In support of the claims made in my complaint, I state the following facts to be true and correct to the best of my knowledge and belief.

The Defendant owns, possesses, or has ready access to firearms or other deadly weapons.
☐ Yes ☐ No ☐ I don't know.

If firearms were present or used in any incidents below, please complete the section on page 2 on firearms.

The most recent incident/date range of abuse that causes me to ask for an order happened on _____
(date(s))
at _____ in the town of _____, in the state of _____.
(time)

When _____ did the following to the minor child named above:
(name)
(NOTE: If alleging coercive control, describe the alleged controlling behavior of the defendant, as defined in 15 V.S.A. § 101(2).

(attach a separate sheet of paper if necessary)

Is the incident described above **the most serious incident** involving the defendant? ☐ Yes ☐ No
If you answered NO:
The most serious incident that causes me to ask for an order happened on _____ at
(date)
_____ in the town of _____, in the state of _____.
(time)

Describe what happened below. *(Be specific. Where did it happen? Who else was there? Was a weapon involved?)*

(attach a separate sheet of paper if necessary)

Other past incidents of serious violence or threats that support my request for an Order include:
(Be specific. For each incident, state: When and where it happened, who else was there, and details about any injuries resulting or weapons used.)

(attach a separate sheet of paper if necessary)

Defendant's Access to Firearms

Information regarding known firearms is provided below:

Type of Firearm/Other Deadly Weapon (handgun/rifle/knife; make/model if known)	**Location of Firearm/Other Deadly Weapon** (e.g., bedroom/vehicle)

If there is not enough room in the space above, please use an additional sheet of paper.

I have attached _____ additional sheet(s).

Defendant's Use of Firearms/Other Deadly Weapons

The defendant ☐ has ☐ has not used, displayed, or threatened to use a firearm or other deadly weapon against the child(ren) (same as above) or against another family member.

If so, please describe below: *(Be specific. What did the defendant do? If the firearm or deadly weapon belonged to someone else, how did defendant get it? Where did the incident happen? Who else was there?)*

(attach a separate sheet of paper if necessary)

Do you believe that the defendant poses a danger to other children in the household? ☐ Yes ☐ No
If you answered YES to the above question, please explain why.

Military Service: The Defendant ☐ is ☐ is not in the military service.

WARNING
MAKING FALSE STATEMENTS IN THIS AFFIDAVIT IS A CRIME SUBJECT TO A TERM OF IMPRISONMENT OR A FINE, OR BOTH AS PROVIDED BY 13 V.S.A §2904

I declare that the above statements are true and accurate to the best of my knowledge and belief. I understand that if the above statements are false, I will be subject to the penalty of perjury or to other sanctions in the discretion of the court.

Date: _____

_____
Signature

_____
Printed Name

NOTICE: This Affidavit will be served on Defendant with the Complaint for Relief from Abuse